ing. The volume of a newspaper's circulation certainly has but a remote bearing on its revenues from advertising, if any at all.

Even were the law so phrased as to levy the tax by reference to the volume of advertising instead of the volume of circulation, it would be invalid.

The fact that these appellees are corporations does not deprive them of the right to resist an attempt to abridge the freedom of the press. *Home Insurance Co.* v. *New York,* 134 U. S. 594.

This Court has the power to ascertain the nature and effect of this Act, irrespective of its designation or declared purpose.

MR. JUSTICE SUTHERLAND delivered the opinion of the Court.

This suit was brought by appellees, nine publishers of newspapers in the State of Louisiana, to enjoin the enforcement against them of the provisions of § 1 of the act of the legislature of Louisiana known as Act No. 23, passed and approved July 12, 1934, as follows:

"That every person, firm, association, or corporation, domestic or foreign, engaged in the business of selling, or making any charge for, advertising or for advertisements, whether printed or published, or to be printed or published, in any newspaper, magazine, periodical or publication whatever having a circulation of more than 20,000 copies per week, or displayed and exhibited, or to be displayed and exhibited by means of moving pictures, in the State of Louisiana, shall, in addition to all other taxes and licenses levied and assessed in this State, pay a license tax for the privilege of engaging in such business in this State of two per cent. (2%) of the gross receipts of such business."

The nine publishers who brought the suit publish thirteen newspapers; and these thirteen publications are the